

COMMERCIAL OFFER — BINDING TERM SHEET

btpAO AI Tender Engine — Calibration Pilot, SaaS Production & Bespoke Engineering

Ref: OFR-2026-MAN-TND-02 | Date: September 15, 2026 | Status: Confidential — Governed by Section 7

THE CLIENT (“First Party”): MAN Enterprise SAL Offshore Sole Center, Charles Malek Avenue, Achrafieh, Beirut, Lebanon Commercial Register of Beirut: No. 1800360 <i>Represented by Mr. Thierry Abi Nader, CEO</i>	THE SOFTWARE EDITOR & PROVIDER (“Second Party”): Charbel AKL Independent Solutions Architect & Software Designer <i>Acting in his personal, individual capacity</i> 105 rue Lauriston, 75116 Paris, France
---	--

1. PURPOSE, CALIBRATION PILOT & CONTINUATION TERMS

- Dedicated Pilot Calibration (€600 Flat Setup):** The Editor configures and calibrates the AI extraction pipeline against one (1) past tender dossier provided by MAN Enterprise, including prompt tailoring for civil-engineering templates and complex BOQ parsing. The Pilot concludes with a live evaluation demonstration.
- Upfront Payment & Non-Refundable Fee:** The €600 setup fee is due upon signature and strictly prior to any commencement of calibration work. It is strictly non-refundable once work begins, covering dedicated compute tokens and specialized onboarding time.
- Phase 2 Transition — Opt-In Only:** Following the live demo, MAN Enterprise may, at its sole discretion, activate Phase 2 by providing explicit written confirmation to the Editor (an email is sufficient). MAN Enterprise is invited to communicate its decision within five (5) business days of the demo. Absent such written confirmation, this Agreement terminates automatically at the end of the Pilot, with no further payment or obligation owed by either Party, and no Phase 2 access is provisioned. For clarity, continued access to the platform or upload of further dossiers does not, by itself, constitute activation of Phase 2.

2. AI ENGINE — CORE CAPABILITIES INCLUDED

- Adaptive Learning Loop:** The engine identifies team refinements and remembers them across future generations for continuous compounding output accuracy.
- Calibrated System Instructions:** Operating instructions are specifically customized to MAN’s engineering vocabulary, tone, and BOQ conventions at inception.
- Automatic Template Continuity:** Dynamic alignment with complex branded Word templates (margins, letterhead, tables) refining progressively.
- Corpus Q&A & Knowledge Capture:** Instant natural-language querying of MAN’s private project archives with explicit source citations.

3. COMMERCIAL FRAMEWORK & PRODUCTION SAAS

Engagement Phase	Pricing Model	Operational Scope & Boundaries
Phase 1: Pilot & Calibration	€600 Flat Due at signature	Ingestion of 1 historical tender dossier; calibration of technical parsing; template adaptation; live evaluation demo. Non-refundable.
Phase 2: SaaS Production	€750 / month (Billed quarterly in advance: €2 250 / quarter)	Up to 8 major tenders/month; 5 user seats; hosting, maintenance, and third-party AI compute included. 12-month initial commitment. Extra tenders: €80/unit.*

* Marginal, compute-only rate applicable beyond monthly quota. Amortizes hosting and support across included units.

- Tacit Renewal:** Upon completion of the initial 12-month period, Phase 2 automatically renews for successive 12-month terms unless terminated with a thirty (30) days' written notice.
- Price Indexation:** Upon each annual renewal referenced above, the Phase 2 monthly fee may be revised by the Editor to reflect inflation, based on the variation of the Syntec index (or, should it cease to be published, the French INSEE consumer price index) between the date of this Agreement and the relevant renewal date, capped at five percent (5%) per annum. The Editor shall notify MAN Enterprise in writing of any revised fee at least forty-five (45)

days before the relevant renewal date, giving MAN Enterprise sufficient time to exercise its termination right under the Tacit Renewal clause above should it not accept the revised fee.

- **Future Modules — Reserved:** The Phase 2 fee covers the platform's core tender-drafting capabilities described in Section 2, including their ongoing maintenance and incremental improvement, for the duration of this Agreement. The Editor reserves the right to develop and offer new, materially distinct feature modules in the future (e.g., new document types, new integrations, or new AI capabilities outside the scope described in Section 2); any such module, if introduced, may be offered to MAN Enterprise under a separate, additional subscription or fee, at MAN Enterprise's option. MAN Enterprise shall never be obligated to purchase any such future module to continue using the Phase 2 service described herein.
- **Taxes & Wire Fees:** All amounts are net in Euros (€), exclusive of VAT (international B2B reverse charge / out of scope). Any wire transfer deductions, intermediary banking fees, or foreign withholding taxes (*retenues à la source*) shall be borne entirely by MAN Enterprise.

4. BESPOKE ENGINEERING & STRATEGIC CONSULTING

This is optional, custom work sitting outside the standard SaaS service described in Section 3 — MAN Enterprise is never required to use it, and it is never triggered automatically. It only applies if MAN Enterprise specifically asks for custom development or senior consulting beyond what the platform already does out of the box. Before any such work begins, and before any invoice is issued, the Editor shall provide MAN Enterprise with a written quote (scope, estimated number of days, and total cost) for its prior written approval; the daily rates below apply only once that quote is approved.

Type of Engagement	Daily Rate	What This Covers, in Practice
Bespoke Engineering & Development	€850 / day	A custom, direct connection between the platform and MAN Enterprise's own internal systems — for example, automatically pulling data from MAN's ERP or databases, or automating a workflow specific to MAN's own processes. Built inside MAN Enterprise's own private, isolated space on the platform.
Architecture & Strategic Consulting	€1 050 / day	Higher-level advisory work — for example, designing the technical approach for an unusually large or complex tender, coordinating directly with MAN Enterprise's IT/security team on a specific request, or fine-tuning how the AI is guided for a particularly demanding submission.

5. THIRD-PARTY AI APIS & METHODOLOGY

- **Client Authorization & Third-Party APIs:** The engine operates via enterprise APIs (OpenAI, Anthropic, Azure) under commercial privacy terms (obligation of means). The Editor is not liable for third-party upstream outages.
- **Modern AI Engineering:** The Editor uses specialized AI development assistants to build, test, and maintain the software, which MAN Enterprise expressly acknowledges and accepts.

6. INTELLECTUAL PROPERTY (100% EDITOR ASSET)

- **Exclusive Editor Ownership:** The platform, source code, extraction logic, and algorithms remain the exclusive worldwide intellectual property of Charbel AKL. No transfer, sale, or work-for-hire is granted.
- **Customer Rights:** MAN Enterprise receives a revocable, non-exclusive right of access. Reverse-engineering, decompiling, or utilizing the platform to train competing LLMs is strictly prohibited, as is copying, reproducing, or sharing the platform's features, access credentials, test results, or screenshots with any third party without the Editor's prior written consent.
- **Client Data Ownership:** MAN Enterprise retains 100% exclusive ownership over its uploaded tender documents, corporate archives, and tenant configurations.
- **Feedback:** Any remarks, corrections, or suggestions made by MAN Enterprise to improve the platform, including through the Adaptive Learning Loop described in Section 2, are welcome but confer no intellectual property rights to MAN Enterprise over the platform or any resulting improvement.

7. CONFIDENTIALITY & NON-DISCLOSURE

- **Mutual Undertaking:** Each Party (the "Receiving Party") shall keep strictly confidential all non-public information received from the other Party in connection with this Agreement — including its existence and terms, pricing and

financial conditions, technical architecture, business methods, and any data exchanged in the course of the engagement (together, "Confidential Information") — and shall use it solely for the purposes of this Agreement.

- **Financial Terms:** Neither Party shall disclose the pricing, rates, or other financial conditions of this Agreement to any third party without the other Party's prior written consent, save for disclosure to its accountants, auditors, or legal counsel, or as required by law or a competent authority.
- **Duration:** This confidentiality undertaking survives the termination or expiration of this Agreement, for any reason, for a period of five (5) years.
- **Remedies:** Without prejudice to any other right or remedy available under applicable law, a breach of this Section entitles the harmed Party to seek full compensation for the resulting damages and any interim or injunctive relief available to stop the unauthorized use or disclosure.
- **Third-Party AI Processing — No Training:** All data MAN Enterprise uploads, including personal data incidentally referenced in generated documents (e.g., names and roles in an organizational chart), is processed exclusively through the professional, enterprise-grade third-party AI providers referenced in Section 5, under their respective commercial terms, which do not use such data to train their underlying AI models. The Editor shall not use MAN Enterprise's data for any purpose other than operating the platform on its behalf.
- **Data Return & Deletion:** Upon termination or expiration of this Agreement, and within thirty (30) days of MAN Enterprise's written request, the Editor shall delete or return MAN Enterprise's uploaded data and archives, save for any copy it must retain by law or for legitimate backup/archiving purposes, which shall remain subject to this Section's confidentiality undertakings.
- **Entire Confidentiality Agreement:** This Section constitutes the entire confidentiality and non-disclosure agreement between the Parties for this engagement; no separate non-disclosure agreement is required unless the Parties expressly agree otherwise in writing.

8. LIABILITY, DEFAULT & GOVERNING LAW

- **Advisory Drafting Assistant Only:** The software generates draft proposals. Qualified MAN Enterprise engineers remain exclusively responsible for verifying and approving all bids prior to formal submittal.
- **Exclusion of Tender Losses:** The Editor is not liable for lost tenders, disqualified bids, commercial forfeiture, or calculation errors.
- **Aggregate Financial Cap:** Liability is strictly capped at €600 during Phase 1, and limited to three (3) months of paid SaaS fees (€2 250) in Phase 2.
- **Payment Default:** Invoices are payable within 15 days. Access may be suspended upon five (5) days' notice in the event of default, without releasing MAN Enterprise from its 12-month commitment.
- **Assignment:** The Editor may assign or novate this Agreement to a duly incorporated entity under his ownership or control, upon prior written notice to MAN Enterprise; such assignment shall not increase MAN Enterprise's obligations nor reduce its rights under this Agreement.
- **Independent Legal Review:** Each Party confirms it has had the opportunity to seek independent legal counsel prior to signing this Agreement, particularly in light of its cross-border nature (France/Lebanon).
- **Governing Law & Validity:** Governed exclusively by the laws of France. Commercial Court of Paris (*Tribunal de Commerce de Paris*) holds exclusive jurisdiction. Offer valid until **October 15, 2026**.

For the Second Party (The Editor)	For the First Party (The Client)
Charbel AKL Independent AI Software Designer Date: September 15, 2026 Signature: <i>Charbel AKL</i>	MAN Enterprise SAL Offshore Represented by Mr. Thierry Abi Nader, CEO Date: _____ Signature & Company Stamp: